



Notification Waiver Determination

The State of Western Australia – Mount Lawley Hospital

Acquisition	The State of Western Australia (the State) applied for a notification waiver in respect of the Health Ministerial Body's (a body corporate established under the <i>Health Services Act 2016</i> (WA)) proposed acquisition of the assets of St John of God Mount Lawley Hospital (Mount Lawley Hospital) from St John of God Healthcare Inc (St John of God), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 August 2026

Parties to the Acquisition	After the Acquisition, the State will operate Mount Lawley Hospital as a public hospital through Western Australia's public health system, to provide government-funded health services to patients. Mount Lawley Hospital is a private hospital located in Mount Lawley, approximately four kilometres from the Perth CBD. The hospital currently provides rehabilitation, specialised medical and surgical services, including orthopaedic, general surgical, urology, rehabilitation, mental health and allied health services. Mount Lawley Hospital is currently owned and operated by St John of God, a not-for-profit Catholic healthcare provider.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - the acquisition involves the conversion of the Mount Lawley Hospital from a private hospital to a public hospital - there are alternative suppliers of hospital services in the Perth region. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. The ACCC notes that it also considered the potential application of section 2B of the Act (Application of Act to States and Territories). The State submitted that making the Acquisition would not involve it in carrying on a business for these purposes. However, it also submitted that a waiver would provide regulatory certainty for the State and St John of God in circumstances where there is some uncertainty around the application of the acquisition provisions in the Act to the Acquisition. Having regard to the circumstances, including the consequences of non-notification, the ACCC considered it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition in order to provide regulatory certainty to St John of God. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act